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ALM GL ch. 266, § 16

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Current through Chapter 8 of the 2025 Legislative Session of the 194th General Court

Heading

Annotated Laws of Massachusetts

PART IV CRIMES, PUNISHMENTS AND PROCEEDINGS IN CRIMINAL CASES (Chs. 263 - 280)

TITLE I CRIMES AND PUNISHMENTS (Chs. 263 - 274)

TITLE I CRIMES AND PUNISHMENTS (Chs. 263 – 274)

Chapter 266 Crimes Against Property (§§ 1 – 148)

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§ 16. Breaking/Entering; Injury or Destruction of Safe or Other Depository of Valuables.

Whoever, in the night time, breaks and enters a building, ship, vessel or vehicle, with intent to commit a felony, or who attempts to or does break, burn, blow up or otherwise injures or destroys a safe, vault or other depository of money, bonds or other valuables in any building, vehicle or place, with intent to commit a larceny or felony, whether he succeeds or fails in the perpetration of such larceny or felony, shall be punished by imprisonment in the state prison for not more than twenty years or in a jail or house of correction for not more than two and one-half years.

Source Information

MA - Annotated Laws of Massachusetts

Related Content

Find references to this code

Archived code versions(34)

History

CL 204, § 3; 1692–3, 18, § 4; 1804, 143, § 4; 1836, 126, § 11; 1839, 31; 1851, 156, § 1; 1860, 161, § 12; 1882, 203, § 12; 1902, 208, § 16; 1943, 343, § 1; 1974, 462, § 2; 1985, 312, § 1.

Annotations

Notes

Amendment Notes

The 1943 amendment added the provision relating to imprisonment in a jail or house of correction.

The 1974 amendment rewrote the section to include the injury or destruction of a safe or other depository of valuables.

The 1985 amendment rewrote the section, adding "vehicle" to the list of places which are the subject of the crime.

Notes to Decisions

1. In general

2. Elements

3. –Breaking and entering

4. –Intent

5. Evidence

6. –Sufficiency

7. Punishment

8. Double Jeopardy

9. Effect of conviction

1. In general

Inasmuch as breaking and entering is not, under this section, punishable by death or life imprisonment, homicide committed during breaking and entering cannot be found to be first degree murder under doctrine of felony murder, and breaking and entering as underlying crime will support no more than finding of second degree murder.

Commonwealth v. White, 353 Mass. 409, 232 N.E.2d 335, 1967 Mass. LEXIS 747 (Mass. 1967), cert. denied, 391 U.S. 968, 88 S. Ct. 2039, 20 L. Ed. 2d 881, 1968 U.S. LEXIS 1516 (U.S. 1968).